

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DANIELA MARTINEZ,

Petitioner

VS.

JORGE ESPINOZA OCHOA,

Respondent

) Case Number: FDI-24-800166

) Hearing Date: July 2, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: STRIKE RESPONDENT'S RESPONSE TO DISSOLUTION AS A
TERMINATING SANCTION AND TO ALLOW PETITIONER TO PROCEED BY DEFAULT

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner Daniela Martinez and Respondent Jorge Espinoza Ochoa.
- 2) On 5/15/26, Petitioner filed a Request for Order seeking to strike Respondent's Response and Request for Dissolution as a terminating sanction to permit Petitioner to proceed by default due to Respondent's noncompliance with disclosure requirements.
- 3) On 5/15/26, Petitioner filed a Memorandum of Points and Authorities.
- 4) On 6/22/26, Respondent filed a Responsive Declaration in opposition to Petitioner's Request for Order. Respondent states he commits to serving his Preliminary Declaration of Disclosure (PDD) before the Court hearing.

B. Findings and Order

- 1) **The parties are ordered to appear** and shall be prepared to inform the Court whether Respondent complied with the mandatory disclosure requirements set forth in Family Code section 2104 (i.e., served his PDD on Petitioner).